

		Alternatively, Judicial Council Form No. MC-013-INFO references the general rule that interest run from the date judgment is entered, but also specifically provides interest begins to accrue for “the amount of costs added to a judgment” from the date ordered by the court” This does not run contrary to section 685.020, but instead provides additional information as to the accrual of interest for costs. Pursuant to Government Code § 68511, “[t]he Judicial Council may prescribe by rule the form and content of forms used in the courts of this state.” MC-012, the Memorandum of Costs After Judgment, is a mandatory form, while MC-013-INFO is an optional form provided to assist the judgment creditor in determining the interest and the amount owed. Thus, though not legal authority, MC-013-INFO is provided by the Judicial Council to assist in the filing of the mandatory memorandum of costs. Thus, the Court finds interest begin to accrue on the subsequently added costs from the date ordered by the court or from the date costs. The Court does not find, however, that interest ceases to accrue on previously awarded judgment/costs when subsequent costs are awarded. The Court intends to discuss further with counsel the correct amounts and dates to be used in the recalculation of interest consistent with the Court’s findings. After further discussion with counsel on 7/6/26, the Court will order Loeffler to file a supplemental declaration setting forth a corrected calculation of interest pursuant to the Court’s findings within five court days of this Order.
6	Vandyke v. Capistrano Unified School District Facilities Corporation 2024-01389174 Motion to Tax Costs	Plaintiff Debe VanDyke’s Motion to Tax Costs is GRANTED in part and DENIED in part. Plaintiff moves to tax Defendant Orange County Department of Education’s (OCDE) memorandum of costs in the amount of \$6,407.63. Code of Civil Procedure § 1032, subdivision (b) states: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” Code of Civil Procedure § 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. (Code Civ. Proc. § 1033.5, subds. (a), (b).) An item not specifically allowable or specifically prohibited under the statute may nevertheless be recoverable in the court’s discretion. (Code Civ. Proc. § 1033.5(c)(4).) All recoverable costs are limited to those that are both “reasonable in amount” and “reasonably necessary to the conduct of

	litigation.” (Code Civ. Proc. § 1033.5(c)(2), (3).) Costs “merely convenient or beneficial to its preparation” are disallowed. (Code Civ. Proc. § 1033.5(c)(2); <i>Ladas v. California State Automobile Ass’n</i> (1993) 19 Cal.App.4th 761, 774 [expenses for attorney’s meals incurred while attending local depositions not “reasonably necessary” since “attorneys have to eat whether they are conducting litigation or not”].) “If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. However, whether a cost item was reasonably necessary is still a question of fact to be decided by the trial court . . . [M]ere statements in the points and authorities accompanying the motion to tax costs and the declaration of its counsel are insufficient to rebut prima facie showing that the claimed costs were necessarily incurred.” (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266; see <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 [party seeking to tax deposition of designated expert has burden to prove cost unnecessary at time incurred or unreasonable]; see also <i>Fennessy v. DeLeuw-Cather Corp.</i> (1990) 218 Cal.App.3d 1192 [contestant met burden by showing majority of costs claimed by a dismissed defendant were incurred on behalf of other defendants who remained in the case].) Here, OCDE seeks to recover costs of \$6,407.62, which consists of \$1,167.95 for deposition costs and \$5,239.68 for costs for service of process. OCDE’s Memorandum of Costs is verified by OCDE’s counsel, Bradley Beherns. (See ROA 75; Remick Decl. iso Motion, Ex. B.) As such, the costs as set forth in the cost memorandum is prima facie evidence of their proprietary. OCDE seeks to recover \$1,167.95 for obtaining copies of two deposition transcripts. The deponents were OCDE’s employees. (Beherns Decl., ¶ 7.) Plaintiff noticed and took the depositions. (Ibid.) The taking, video recording, and transcribing necessary depositions is expressly allowed by statute. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Plaintiff seeks to tax the entirety of these costs. Plaintiff argues they were not reasonably necessary because OCDE did not use the deposition transcripts to support its MSJ, which was based on a single issue, the exclusive remedy doctrine of the Workers’ Compensation Act. Plaintiff’s argument lacks merit. The mere fact that the transcripts were not used to support OCDE’s MSJ does not establish the transcripts were not reasonably necessary to
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the conduct of litigation. A prevailing party's right to recover costs is not conditioned upon the use of the transcripts in a motion or at trial. (See, *Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 694 [stating service of process fees are not limited to witnesses used at trial].) Further, section 1033.5, subdivision (c)(4) gives the Court discretion to allow costs not specifically mentioned in the statute. (See, e.g., *Applegate v. St. Francis Lutheran Church* (1994) 23 Cal.App.4th 361, 364 [the cost of preparing exhibits not introduced into evidence because the case is dismissed before trial].)

Here, OCDE asserted several defenses in its Answer to the Complaint besides the exclusive remedy doctrine. Had the Court denied OCDE's MSJ, OCDE would need the transcripts to prepare its defense for trial. Defense counsel states OCDE obtained copies of the transcripts to evaluate the testimony, prepare for trial, and formulate its summary judgment strategy. (Beherns Decl., ¶ 7.) "Although the scope of the summary judgment motion was more narrow than the potential issues that might arise at trial, [defendant] was entitled to conduct discovery necessary to prepare for trial and to recover those costs after prevailing in the action. It would be anomalous to deny costs where [defendant] utilized a more economical procedure." (*Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 578.) Thus, obtaining copies of the transcript was reasonably necessary to the conduct of litigation.

Service of Process

OCDE seeks to recover \$5,239.68 for service of process. These costs represent fees incurred by registered process servers to serve 35 deposition subpoenas for business records on Plaintiff's medical providers. (Beherns Decl., ¶ 9.) Costs associated with service of process by a public officer, registered process server, or other means are recoverable. (Code Civ. Proc. § 1033.5, subd. (a)(4).) Recoverable costs for service by a registered process server "is the amount actually incurred in effecting service, including, but not limited to, a stakeout or other means employed in locating the person to be served, unless those charges are successfully challenged by a party to the action." (Code Civ. Proc. § 1033.5, subd. (a)(4)(B).)

Plaintiff seeks to tax the entirety of these costs. Plaintiff argues these costs were not reasonably necessary because OCDE did not use the medical records to support its MSJ. Plaintiff's argument fails here for the same reasons discussed in regard to the deposition costs. In addition, Plaintiff's "medical records were clearly relevant to her personal injury claim, and [OCDE] was entitled to depose the custodian of records for each of [Plaintiff]'s health care providers and potential experts." (*Naser, supra*, 227 Cal.App.4th at p. 578.)

		Plaintiff also argues these costs represent unallowable “photocopying” charges under section 1033.5, subdivision (b)(3). Plaintiff’s argument lacks merit. Fees incurred for preparing, issuing, and serving deposition subpoenas for production of business records through a registered process server are recoverable under section 1033.5(a)(4), and are not subject to the copying exclusions of subdivision (b)(3). (<i>Naser, supra</i>, 227 Cal.App.4th at pp. 576-577.) Plaintiff next argues the costs are duplicative since subpoenas were served on the same providers multiple times. OCDE contends the subpoenas were not duplicative because Plaintiff received ongoing treatment, physical therapy, and imaging throughout the litigation requiring sequential subpoenas to capture newly generated records. (Beherns Decl., ¶ 10.) OCDE contends the service dates listed in Attachment 5d, ranging from July 2024 to April 2025, demonstrates a pattern of discovery aimed at monitoring Plaintiff’s medical condition and damages. This is a reasonable explanation. In her reply, Plaintiff does not dispute receiving ongoing treatment throughout this litigation. However, the service dates show that multiple subpoenas were issued to the same provider on the same day or a few days apart. Therefore, the many of the subpoenas appear to be duplicate as Plaintiff contends. For example, three subpoenas were issued to Mission Hospital Regional Medical Center on 11/8/24 (\$245.79), 11/11/24 (\$102.90), and 11/25/24 (\$202.50). Similarly, two subpoenas were issued to Select Physical Therapy on 11/6/24 (\$88.13 and \$191.78). Neither Attachment 5d nor OCDE’s opposition explains why multiple subpoenas were issued to the same provider on the same day or within a few days. As such, OCDE has not established all of the subpoenas were reasonably necessary. In her reply, Plaintiff argues for the first time that Defendant Capistrano Unified School District issued 22 of the subpoenas, not OCDE. (See Remick Decl. iso Reply, ¶¶ 4-5, Exs. B-C.) Because Plaintiff did not raise this point in her motion, she did not adequately place it in issue. Because OCDE failed to adequately explain the apparent duplicate subpoenas, the motion is GRANTED in part as to Item 5 – service of process costs. The motion is DENIED as to the Item 4 – deposition costs. Defendant Orange County Department of Education’s memorandum of costs is ORDERED taxed in the amount of \$1,346.83.
7	Interinsurance Exchange of the Automobile Club vs. Taylor 2023-01322290	Defendant’s Motion to Amend the Judgment is DENIED. Defendant Christopher Michael Taylor’s Motion to Vacate Judgment is DENIED.